

**BEFORE THE
FEDERAL MARITIME COMMISSION**

**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,**

Vs.

**MAERSK LINE A/S,
JOHN DOES,
Respondents.**

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DOCKET #:

20-17

COMPLAINANT’S FIRST SET OF INTERROGATORIES TO RESPONDENT

Pursuant to the Scheduling Order of May 13, 2021, Complainant, Marie Carew d/b/a Holiday Shipping (“Holiday”), requests that Respondent, Maersk Line A/S answer fully in writing and under oath, each of the following interrogatories. In answering these interrogatories, furnish all information available to you, including information possessed by any agent, employee, affiliated subsidiaries, or attorney(s).

Definitions

Unless otherwise indicated, the following definitions shall apply to these discovery requests:

1. “And” and “or” have both conjunctive and disjunctive meanings as necessary to bring within the scope of each request all documents and information that might otherwise be construed to be outside its scope.
2. “Maersk Line” shall mean Respondent and all merged, consolidated, and acquired predecessors, including the previous owner or owners of any lines of business acquired through the purchase of assets or similar transaction, or successors, parents, subsidiaries, divisions, and affiliates, wherever located,

and each past and present officer, director, employee, agent, servant and representative of each such entity or individual, and each past and present attorney of each entity or individual, and any other persons acting or purporting to act on behalf of Maersk Line A/S.

3. "You" or "your," unless specifically designated otherwise, means the Respondent, Maersk Line A/S, all merged, consolidated, and acquired predecessors, including the previous owner or owners of any lines of business acquired through the purchase of assets or similar transaction, or successors, parents, subsidiaries, divisions, and affiliates, wherever located, and each past and present officer, director, employee, agent, servant and representative of each such entity or individual, and each past and present attorney of each such entity or individual.
4. "Complainant" shall mean Marie Carew d/b/a Holiday Shipping.
5. "Describe" means a complete report of all facts known to you about an incident, event, physical object, person, or other subjects, together with any expert opinions about the subject matter, the basis for those opinions, and a description of all relevant documents and evidence that supports and/ or refutes the fact or opinion.
6. "Document(s)" means all writing of any kinds, including, without limitation, the originals and all non-identical copies, whether different from the originals by reason of any notation made on such copies or otherwise including, without limitation, correspondence, memoranda, notes, diaries, statistics, letters, e-mail messages and attachments, telegrams, minutes, contracts, reports, studies, checks, statements, receipts, returns, summaries, pamphlets, books, interoffice and intra-office communications, notations, of any conversations (including, without limitation, telephone calls, meetings, and

other communications of any kind), bulletins, printed matter, computer printouts, teletypes, telefax, “twix” messages, invoices, worksheets, graphic or oral records or representations of any kind (including, without limitation, photographs, charts, graphs, microfiche, microfilm, videotapes, recordings and motion pictures), electronic, mechanical, or electric records or representations of any kind (including, without limitation, tapes, cassettes, discs, recordings and computer memories), and all drafts, alterations, modifications, changes and amendments of any of the foregoing.

7. 965477262; 965544009; 965751148; and 965885829 for the ocean carriage of containerized cargoes of motor vehicles, auto parts, personal effects, household, and used machinery and other goods from United States ports to African ports.
8. “Georgia Ports” shall refer to all the terminal ports and jetties under the Georgia Ports Authority is not limited to the Garden City Terminal, Port of Savannah, and Port of Brunswick.
9. Nigeria Ports Authority (NPA) is not limited to Tin Can Island, Apapa Wharf, or any other ports in Nigeria.
10. “Implement” means to accomplish, carry out, or fulfill.
 - a. “Including,” as used in these Requests, shall be construed inclusively and not as a term of limitation.
 - b. “Material benefits” includes profits, fees, fixed by contract, below-market prices for the rental, use and/or purchase of government-owned facilities and/or machinery, favorable tax treatment, tax deductions and refunds, patents arising from the development of war material, company goodwill, tax offsets or payments resulting from wartime losses and claims, and any other type of financial or property gain.

10. Persons upon whom you “rely” for an interrogatory answer mean all of the following: (a) persons who are the source of information upon the answer is based, and (b) persons who have information that supports the answer.
11. “Refer to” or “refers to” means mentioning, discussing, making reference to, or relating to in any way.
12. “Relate (s) to” or “relating to” means constituting, defining, concerning, embodying, reflecting, identifying, stating, referring to, bearing upon, dealing with, or in any way pertaining to.
13. “FMC” shall mean the Federal Maritime Commission and includes, but is not limited to, any predecessor or successor agencies, and any divisions, departments, affiliates, agents, attorneys, representatives, employees, and/or other persons acting on its behalf.
14. “Person” or “persons” shall mean an individual, corporation, proprietorship, partnership, association, or any other entity.
15. The term “document” shall have the broadest meaning possible under the Federal Rules of Civil Procedure. It shall include, but not be limited to, the original (or a copy when the original is not available) and each non-identical copy (including those which are non-identical because of translations, notations, or markings) or any and all other written, printed, typed, punched, taped, filmed, or graphic matter or recorded or tangible thing, or whatever description, however, produced or reproduced (including computer-stored or generated data, together with instructions or programs necessary to search and retrieve such data and hard copies where available and retrievable), and shall include all attachments to and enclosures with any requested item, to which they are attached or with which they are enclosed, and each draft thereof. The term document shall specifically include all recorded or

retrievable electronic data or communications such as electronic mail (e-mail) and the like and all translations thereof.

16. The term “thing” refers to any tangible object, other than a document, and includes objects of every kind and nature, including, but not limited to, prototypes, models, and specimens.

17. “Communication” means any oral, written, electronic, or other exchange of words, thoughts, information, or ideas to another person or entity, whether in person, in a group, by telephone, by letter, by Telex, by facsimile, or by any other process, electric, electronic, or otherwise. All such communications in writing shall include, without limitation, printed, typed, handwritten, or other readable documents, correspondence, memoranda, reports, contracts, drafts (both initial and subsequent), computer discs or transmissions, e-mails, instant messages, tape or video recordings, voicemails, diaries, log books, minutes, notes, studies, surveys and forecasts, and any and all copies thereof.

18. The words “or,” “and,” “all,” “every,” “any,” “each,” “one or more,” “including,” and similar words of guidance, are intended merely as such, and should not be construed as words of limitation. The words “or” and “and” shall include each other whenever possible to expand, not restrict, the scope of the request. The word “including” shall not be used to limit any general category or description that precedes it. The words “all,” “every,” “any,” “each,” and “one or more” shall include each other whenever possible to expand, not restrict, the scope of the request.

19. Reference to the singular in any of these Requests shall also include a reference to the plural, and reference to the plural also shall include a reference to the singular.

20. These Requests are intended to elicit as much information as possible

concerning the issues, and to the extent, any Request could be interpreted in more than one way, you should employ the interpretation of the request most likely to encompass and elicit the greatest amount of information possible.

21.If Plaintiff refuses to disclose any of the documents or things requested in any of these requests based on a privilege or other protection, please so state, and further state the basis of the privilege or other protection claim with sufficient specificity to permit the Court and counsel to evaluate and test the privilege or protection claimed, pursuant to Fed. R. Civ. P. 26(b)(5).

INSTRUCTIONS

1. Complainant's First Set of Interrogatories to Respondents
("Interrogatories") is directed to Maersk Line A/S and covers all information in your possession, custody, or control, including information in possession of your officers, employees, agents, servants, representatives, attorneys, or other persons directly or indirectly employed or retained by you, or anyone else acting on your behalf or otherwise subject to your control, and any merged, consolidated, or acquired predecessor or successor, parent, subsidiary, division or affiliate, including, without limitation information in any corporate archives or document collection of any kind over which you exercise any authority to control access to any degree.
2. These Interrogatories are continuing in nature: your response must be supplemented, in accordance with Fed. R. Civ. P. 26(e), if you, your counsel, or your agents obtain further or different information or documents before or during trial on the matters alleged in the Complaint.
3. In answering these Interrogatories, please set forth the Interrogatory or subpart thereof to which each answer corresponds immediately before your

answer.

4. A request for the identification or description of any fact includes, without limitation, a request for the identification and description of all persons with knowledge of such fact, and all documents relating to such fact.

5. Whenever in these Interrogatories there is a request to identify a “document,” state or identify:

- a) Its date;
- b) Its author and signatory;
- c) Its addressee and all other persons receiving copies;
- d) The type of document (letter, memorandum, contract, report, accounting record, etc.);
- e) Its title;
- f) Its substance;
- g) Its addressee and all other persons receiving copies;
- h) Its custodian;
- i) Its present or last known location;
- j) Its Bates number or other similar identifying number or label; and
- k) If the document was, but no longer is, in your possession or subject to your control, state where and in whose possession or control it is.

6. Whenever in these Interrogatories there is a request to identify a “person,” where the person is a natural person, state or identify the person’s:

- a) Full name;
- b) Current and last known business and residence address;
- c) Employer’s name and address; and
- d) Position and/or occupation.

7. Whenever in these Interrogatories there is a request to identify a

“person,” where the person is not a natural person, state or identify the person’s:

- a) Full name;
- b) The form of its organization (corporation, partnership, etc.);
- c) Present or last known principal place of business;
- d) Telephone number; and
- e) Business.

8. Whenever a full and complete answer to any Interrogatory or part of an Interrogatory is contained in a document or documents, the documents, if properly identified as answering a specific numbered interrogatory or part of an interrogatory, may be supplied in place of a written answer provided that the specific sections or pages from the document that are responsive to the Interrogatory are identified.

9. Interrogatories calling for numerical or chronological information shall be deemed, to the extent that precise figures or dates are not known, to call for estimates. In each instance that an estimate is given, it should be identified as such together with the source of information underlying the estimate.

10. If you currently lack information to answer any Interrogatory, please state:

- a) The responsive information currently available;
- b) The responsive information currently unavailable;
- c) Efforts which you intend to make to secure the information currently available; and
- d) When you anticipate receiving the information currently unavailable.

11. If you do not know the answer to any Interrogatory, identify the person(s) who know(s) or would be expected to know the answer to such Interrogatory.

12. If anything is deleted from a document produced in response to these Interrogatories, identify each such document in your response and state:

- a) The privilege or other reason asserted for the deletion;
 - b) The subject matter of the deletion;
 - c) The factual basis giving rise to the privilege or other reason asserted;
- and
- d) The identity of the person responsible for the deletion.

13. If you believe that any information requested by any of the following interrogatories is privileged, please identify such information, state the privilege asserted, and state the facts giving rise to such privilege.

14. In the event that you object to a particular Interrogatory as vague or burdensome, you should answer that and all other Interrogatories to the best of your ability and in good faith, preserving any bona fide objections if necessary.

15. Unless otherwise specified, the following Interrogatories cover documents from 2005 to the present.

INTERROGATORY NO. 1:

Describe in detail the relationships between the following entities:

- a. A.P. Moller-Maersk and Maersk Line, A/S;
- b. A.P. Moller-Maersk and Maersk Line, Nigeria; and
- c. Maersk Line, A/S and Maersk Line, Nigeria.

INTERROGATORY NO. 2:

Explain in detail what is expected of each of the Consignees listed in the four (4) bills of lading itemized in Paragraph 7 of the Definition Section at the port of destination in Nigeria.

INTERROGATORY NO. 3:

State if you have made inquiries of all interactions between Maersk Line,

Nigeria, and each of the designated Consignees in the four (4) bills of lading, including documents, payments, and others means of contact with each of the Consignees.

INTERROGATORY NO. 4:

- I. Explain each of the following payment platforms:
 - a. NIBSS E-bills platform; and
 - b. “myEASYRELEASE” platform.
- II. Further, identify all outstanding and received invoices on each of the four (4) bills of lading. Include the dates that each invoice was issued, when you received payment, or if payment is still outstanding.

INTERROGATORY NO. 5:

- I. State when and if the Consignees listed in the bills of lading in Paragraph 7 of the Definition Section has presented his or her original Bill of lading at the Release Counter; and
- II. If it was a seaway bill, state if Maersk Line, Nigeria has received an electronic copy in the mail;

INTERROGATORY NO. 6:

Explain for each of the bills of lading in Paragraph 7 of the Definition Section,

- I. If Maersk Line, Nigeria has issued a Delivery Order; and
- II. If Maersk Line, Nigeria, has not issued a Delivery Order, state the reason for the failure or refusal to issue the delivery order.

This the 2nd day of June, 2021.

Respectfully submitted,

/s/ Yinka Omole
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